

Biosecurity enforcement officers have the powers and ability to issue all 55 of the infringement notices under the Infringement Notice Scheme (INS). They can issue infringement notices to importers and import industry participants across all import pathways. They can also issue infringement notices to manage biosecurity risks relating to ships and aircraft and biosecurity risks onshore.

A list of the 55 infringement notices that can be issued by biosecurity enforcement officers for contraventions of the Biosecurity Act 2015 are set out in the table below.

This overview is a summary of the relevant provisions.

Section number	Explanation of contravention
124(2)	A person in charge of goods fails to comply with a direction to secure the goods
125(4)	A person in charge of goods fails to comply with a direction to deliver samples of goods to the biosecurity officer
126(2)	A failure to comply with a requirement to answer questions or provide information in writing in relation to goods
127(3)	A failure to comply with a requirement to produce documents in relation to goods specified by the biosecurity officer
128(2)	A failure to comply with a direction given by a biosecurity officer to not move, deal with or interfere with goods
129(2)	A failure to comply with a requirement not to interfere with, remove or deface a biosecurity control notice affixed to goods or given to a person in charge of goods
130(2)	An unauthorised person fails to comply with a direction to not move, deal with or interfere with goods in relation to which a direction has been given or a notice has been affixed
139(3)	A failure to comply with a direction to not interfere with, remove or deface a notice affixed to goods
186A(1)	A person brings or imports conditionally non-prohibited goods into Australian territory, a condition applying to the goods has not been complied with and the goods are concealed for the purpose of preventing the goods from being found, or preventing the true nature of the goods from being determined, by a biosecurity official
188(1)	A person receives, or has in their possession prohibited or suspended goods that have been brought or imported into Australian territory
196C	Civil penalty for failing to comply with requirement
196(4)	A person on an incoming aircraft or vessel fails to comply with a direction to provide information (including by answering questions) for the purpose of assessing the level of biosecurity risk associated with the person and any goods that that person has with them
198(2)	A person in charge or the operator of a conveyance fails to comply with a direction to secure a conveyance in a manner, and for a period (which must not exceed 48 hours), specified by the biosecurity officer
200(2)	

- A failure to comply with a direction to provide information, answer questions, or provide information in writing, in relation to a conveyance
- 201(3) A failure to comply with a direction to produce documents in relation to a conveyance as specified by the biosecurity officer
- 202(2) A person in charge or the operator of a conveyance fails to comply with a direction to not move, deal with or interfere with a conveyance; to move the conveyance, as soon as practicable, to a place specified by the biosecurity officer; any other direction relating to the movement of a conveyance; or cause the conveyance to be moved to another place
- 203(2) A person interferes with, removes or defaces a notice affixed to a conveyance or given to a person in charge of a conveyance
- 204(2) An unauthorised person moves, deals with or interferes with a conveyance to which a direction to secure or relating to movement has been given
- 214(3) A person interferes with, removes or defaces a notice affixed to a conveyance
- 220(1) The person in charge or the operator of an incoming aircraft or vessel that is subject to biosecurity control fails to ensure that each person (including a member of the crew) on board the aircraft or vessel is given information about biosecurity requirements under the laws of the Commonwealth
- 221(3) The person in charge of a vessel that is within Australian territory has failed to ensure that the prescribed quarantine signal is displayed on the vessel in the circumstances and in the manner prescribed by the regulations
- 300B(2) The person in charge or operator of a vessel fails to comply with a direction to secure the vessel in a manner, and for a period (which must not exceed 48 hours), specified by the biosecurity officer
- 300C(4) The person in charge of the vessel fails to comply with a direction to deliver to the biosecurity officer samples of ballast water from the vessel*
- 300D(2) A failure to comply with a direction to answer questions, or provide information in writing, in relation to a vessel
- 301(4) The owner of a vessel fails to produce a record or a copy of a record as required by a biosecurity officer and does not do it as soon as reasonably practicable
- 317(3) A person in charge of goods or a conveyance fails to comply with a direction to secure the goods or conveyance as specified by the biosecurity officer
- 318(4) A person in charge of goods or premises fails to deliver to the biosecurity officer such samples of the goods or premises as specified in the biosecurity officer's direction
- 319(2) A failure to answer questions, or provide information in writing in relation to goods or premises as required by a biosecurity officer
- 320(3) A failure to produce documents in relation to goods or premises as required by a biosecurity officer
- 321(2) The person in charge of goods or a conveyance fails to comply with a direction not to move, deal with or interfere with the goods or conveyance; a direction to move the goods or conveyance, as soon as practicable, to a place specified by the biosecurity officer; any other

direction relating to the movement of the goods or conveyance; or cause the goods or conveyance to be moved to another place

- 322(3) A person interferes with, removes or defaces a notice affixed to goods or a conveyance
- 323(1) An unauthorised person moves, deals with or interferes with the goods or conveyance to which a notice has been affixed by a biosecurity officer
- 348(3) A person interferes with, removes or defaces a notice affixed to goods or premises by a biosecurity officer
- 363(1) An unauthorised person moves, deals with or interferes with the goods or premises to which a notice has been affixed by a biosecurity officer
- 373(1) An unauthorised person interferes with, removes or defaces notices or markings identifying a biosecurity response zone
- 374(1) An unauthorised person interferes with, removes or defaces the notice or markings identifying goods or premises in a biosecurity response zone
- 381(1) An unauthorised person interferes with, removes or defaces the notice or markings identifying a biosecurity monitoring zone
- 382(1) An unauthorised person interferes with, removes or defaces the notice or markings identifying goods or premises in a permanent biosecurity monitoring zone
- 383(1) An unauthorised person interferes with, removes or defaces the trap, equipment or other structure set up in a permanent biosecurity monitoring zone
- 391(1) An authorised person interferes with, removes or defaces the notice or markings identifying a temporary biosecurity monitoring zone
- 392(1) An unauthorised person interferes with, removes or defaces the notice or markings identifying goods or premises in temporary biosecurity monitoring zone
- 393C Civil penalty for failing to comply with a preventative biosecurity measure
- 393(1) An unauthorised person interferes with, removes or defaces the trap, equipment or other structure set up in a temporary biosecurity monitoring zone
- 401(1) An unauthorised person interferes with, removes or defaces the notice or markings identifying a biosecurity activity zone
- 402(1) An unauthorised person interferes with, removes or defaces the notice or markings identifying goods or premises in a biosecurity activity zone
- 438(1) A person gives information in connection to biosecurity activities that are being or are to be carried out by the biosecurity industry participant in accordance with an approved arrangement covering the biosecurity industry participant to a biosecurity officer and does so knowing that the information is false or misleading
- 439(1) A person produces a document to a biosecurity industry participant; and the person does so knowing that the document is false or misleading and the information is given in connection with biosecurity activities that are being, or are to be, arranged covering the biosecurity industry participant
- 456(3) A person, during a biosecurity emergency period, interferes with, removes or defaces the notice affixed to goods or conveyance

- 532(1) A person gives information in compliance or purported compliance with this Act; and the person does so knowing the information is false or misleading; or omits any matter or thing without which the information is misleading
- 533(1) A person produces a document to another person; and the person does so knowing that the document is false or misleading; and the document is produced in compliance or purported compliance with this Act
- 556(4) The person in charge of a conveyance fails to comply with a direction to provide suitable and sufficient food and sleeping accommodation for the biosecurity officer
- 600(6) A person in charge of goods fails to comply with the direction to secure the goods in a manner specified by the biosecurity officer; a direction not to move, deal with or interfere with the goods; a direction to move the goods to a place specified by the biosecurity officer; and other directions relating to the movement of goods
- 601(1) A person is given a direction in relation to withheld goods and the person moves, deals with or interferes with the goods
- 607(1) A direction has been given in relation to a detained conveyance and a person fails to comply with a direction to not move, deal with or interfere with the conveyance
- 631(3) A person fails to comply with a direction or request to not damage or destroy goods whilst following a direction to do a thing (including taking a biosecurity measure) in relation to goods for the purposes of this Act and the person did not act in good faith and the destruction or damage was not a reasonable or necessary result of complying with the direction or request in relation to the goods

Under Commonwealth law, financial penalties are calculated in ‘penalty units’. Section 4AA of the Crimes Act 1914 sets the monetary amount of one penalty unit. As of 1 July 2023 the amount of one penalty unit is set at \$313.

While the amount payable under an infringement notice issued by biosecurity enforcement officers varies depending on the contravention or offence, generally the amount is 12 penalty units (currently \$3,756) for an individual and up to 100 penalty units (currently \$31,300) for a company.

If you choose not to pay the penalty amount outlined on the infringement notice or don’t pay within the payment period specified in your notice (including any extension period given), then court proceedings seeking a civil penalty order may be brought against you in relation to an alleged contravention, or you may be prosecuted for an offence if you have contravened an offence provision under the Biosecurity Act.

You may choose not to pay the amount payable that is specified on the infringement notice. However, if you choose not to pay then court proceedings seeking a civil penalty order under Part 4 of the RPA may be brought against you in relation to the alleged contravention.

The maximum penalty that a court could impose for each contravention is:

- s 126(2) - 300 penalty units (\$93,900)
- s 128(2) - 300 penalty units (\$93,900)

- s 532(1) - 60 penalty units (\$18,780)
- s 533(1) - 60 penalty units (\$18,780)
- s 186A(1) – 1200 penalty units (\$375,600)

If you choose to pay the infringement notice on time, and the infringement notice is not withdrawn by the department, court proceedings seeking a civil penalty order under Part 4 of the RPA will not be brought against you in relation to the alleged contravention.

Payment of the amount payable in the infringement notice is not an admission of guilt or liability.

If you are issued with an infringement notice by a biosecurity enforcement officer, the payment period for the infringement is 28 days after the day the notice was given.

You may pay the penalty amount specified on your infringement notice within the payment period displayed on the notice with a credit card, cheque, money order or electronic funds transfer. Further payment details can be found on the back of your infringement notice.

If you have been issued with an infringement notice you may request an extension of time in which to pay the notice by contacting the department's Infringement Notice Unit (INU) (see details below).

You may request an extension of time in which to pay the notice as long as you seek the extension of time within the original payment period. You cannot request an extension once the original payment period has ended.

If you have already received an extension and still require further time to pay your notice, you must apply for this within the extended period, as late payments received outside of the extended payment period cannot be accepted by the department. You may request an extension more than once.

If you have been issued with an infringement notice you may write to the Director of Biosecurity seeking the withdrawal of the notice.

To request a withdrawal you:

- must make the request in writing; and
- may provide information about the circumstances of the alleged contravention and any other relevant information to assist the Director of Biosecurity to make a decision on your request.

If you are acting on behalf of someone who has received an infringement notice, an Authority to Act form must also be provided with your submission. The completed form allows the INU to review the matters you have raised on behalf of the notice recipient. The INU will notify the nominated representative of the infringement notice of its decision, in writing.

The Director of Biosecurity has the ability to withdraw an infringement notice whether or not the notice recipient has made written representations seeking the withdrawal.

Forms

- [Infringement Notice Scheme - Authority to Act \(PDF 246 KB\)](#)
- [Online request for withdrawal or extension](#)

If you have difficulty accessing these files, contact InfringementUnit@aff.gov.au for assistance.

Contact us

Please contact the Infringement Notice Unit via email: InfringementUnit@aff.gov.au.

This email inbox is checked during business hours, Monday – Friday 8.30 am - 4.30 pm AEST.

Phone: 02 6272 4965

Postal address:

Infringement Notice Scheme

Department of Agriculture, Fisheries and Forestry

GPO Box 858

Canberra ACT 2601

Source: <https://www.agriculture.gov.au/biosecurity-trade/policy/legislation/compliance/infringement-notice-scheme/other-infringement-notices>